STUDIO DZIMBAHWE (PRIVATE) LIMITED
and
CANAAN MUSHAKAVANHU
versus
KUDZAI MAPFUMO MASAIRE
and
THE CHIEF REGISTRAR OF DEEDS (N.O)
and
THE MASTER OF THE HIGH COURT (N.O)

HIGH COURT OF ZIMBABWE
**KATIYO J**
HARARE 9 MARCH & 16 March 2026

**Special Plea**

Ms. *G Dzvitiro* for the plaintiffs
Adv *F Chinwawdzimba* with *G. Motsi* for the 1st defendant

KATIYO J

**Introduction**

This matter came before the court for determination of a special plea in bar and abatement raised by the 1st defendant. The special plea challenges the competency of the plaintiffs' claim and seeks the dismissal of the action without the court entering into the merits of the dispute.

The dispute arises from a joint venture agreement entered into between the parties relating to the development and subdivision of immovable property. The plaintiffs allege that the 1st defendant acted in breach of the agreement and seek relief arising from the alleged violation of their contractual rights.

The 1st defendant opposes the claim and raised a special plea contending that the proceedings are legally incompetent on the basis that the parties agreed to alternative dispute resolution mechanisms, specifically mediation, prior to approaching the courts.

The plaintiffs oppose the plea and contend that the 1st defendant cannot rely on the mediation clause because it had allegedly acted in breach of the agreement.

The issue for determination is therefore whether the special plea raised by the 1st defendant is sustainable in law and dispositive of the proceedings.

**Background**

The first plaintiff, Studio Dzimbahwe (Private) Limited, together with the second plaintiff, instituted action proceedings against the defendants seeking relief connected with rights and obligations allegedly arising from a joint venture agreement relating to the development and subdivision of certain immovable property.

The documentary record placed before the court includes:

- a Last Will and Testament
- Letters of Administration
- a Deed of Grant
- a Deed of Transfer
- a Power of Attorney dated 14 March 2018
- an Invoice dated 29 March 2018
- a Joint Venture Agreement
- Various correspondence between the parties concerning the development project.

The plaintiffs allege that the 1st defendant acted in a manner inconsistent with the rights granted to them under the joint venture agreement.

The 1st defendant disputes this assertion and contends that the plaintiffs prematurely approached this court in breach of the dispute resolution mechanism agreed upon by the parties.

**The Special Plea**

The 1st defendant's special plea is premised on the argument that:

1. The joint venture agreement contains a clause providing for mediation as the agreed dispute resolution mechanism in the event of a dispute between the parties.
2. The plaintiffs instituted proceedings in the High Court without first exhausting the agreed dispute resolution procedure.
3. Consequently, the proceedings are premature and legally incompetent.

Counsel for the plaintiffs did not dispute the existence of the mediation clause but argued that the 1st defendant was the first to disregard the agreement when it allegedly terminated the joint venture without resorting to mediation.

**Issues for Determination**

The issue for determination is therefore:

Whether the plaintiffs were entitled to approach the High Court without first complying with the dispute resolution mechanism provided for in the joint venture agreement.

**The Law on Special Pleas**

A special plea is a procedural device which allows a defendant to raise a defence that does not go to the merits of the dispute but which, if successful, disposes of the proceedings.

In *Dube v Khumalo 1986 (2) ZLR 103 (SC*) the Supreme Court explained that a special plea raises a legal impediment which, if upheld, renders the proceedings unsustainable.

Similarly, in *Madzivire v Zvarivadza HH 162-02*, the court observed that the purpose of a special plea is to avoid engaging with the merits of a matter where a legal bar exists which prevents the court from entertaining the claim.

The same principle was reiterated in *Muchengeti v Zimbabwe National Water Authority* HH 306-15, where the court held that where a special plea establishes that a claim is legally incompetent, the proceedings must be dismissed.

**Analysis**

It is common cause between the parties that the joint venture agreement provides for mediation as the first step in resolving disputes.

The 1st defendant contends that the plaintiffs disregarded this provision and prematurely approached the High Court.

The plaintiffs, on the other hand, argue that the 1st defendant itself breached the agreement when it allegedly terminated the joint venture without resorting to mediation and therefore cannot rely on the mediation clause.

Having carefully examined the documents filed of record, this court notes that no document evidencing a formal cancellation of the joint venture agreement has been produced.

The closest document relied upon by the parties is a letter written by the 1st defendant outlining circumstances under which the agreement could be cancelled. Such correspondence, in my view, cannot be construed as an actual cancellation of the agreement.

It is also significant that the correspondence in question was drafted by legal practitioners. It would therefore be difficult to accept that legal practitioners would purport to cancel a contract without doing so in clear and unequivocal terms.

In the absence of evidence of a valid cancellation of the agreement, the joint venture agreement remains binding on the parties, including the dispute resolution clause contained therein.

The argument advanced by the plaintiffs that the 1st defendant disregarded the agreement cannot justify their own failure to comply with the contractual dispute resolution mechanism.

The court takes the view that one party's alleged breach of an agreement does not entitle the other party to disregard the agreement altogether.

It is trite that courts must respect the principle of *pacta sunt servanda*, which requires parties to honour the agreements they freely entered into.

In *Muchakata v Netherburn Mine 1996 (1) ZLR 153* (S) the Supreme Court emphasised that where the law or an agreement prescribes a particular procedure, litigants must follow that procedure before approaching the courts.

The parties in the present matter agreed to resolve disputes through mediation before approaching the courts. That contractual obligation cannot be ignored.

Although this court enjoys inherent jurisdiction to hear matters placed before it, that jurisdiction must be exercised in a manner that respects the contractual arrangements entered into by litigants.

In my view, the plaintiffs' decision to institute proceedings without first complying with the mediation clause renders the proceedings premature.

The special plea raised by the 1st defendant is therefore well founded.

**Conclusion**

The plaintiffs instituted these proceedings without first complying with the dispute resolution mechanism provided for in the joint venture agreement.

The failure to exhaust the agreed procedure renders the proceedings premature and legally incompetent.

The special plea raised by the 1st defendant must therefore succeed.

**Order**

Accordingly, it is ordered that:

1. The 1st defendant's special plea in bar be and is hereby upheld.
2. The plaintiffs' action be and is hereby dismissed.
3. The plaintiffs shall jointly and severally pay the costs of suit, the one paying the other to be absolved.

*G. Dzitiro Attorney's* legal practitioners for the plaintiffs
*G.S Mosti Law Chamber* legal practitioners for the defendants